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Case Name: *Michael Minh Vanderzyl v. Bill Wong, et al.*

Case No.: 25CV466037

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Michael Minh Vanderzyl (“Plaintiff”) moves under Code of Civil Procedure Section 473(d) to set aside the Order of Dismissal dated and entered on April 23, 2026 which was made without prejudice and subject to Code of Civil Procedure Section 664.6 (the “Section 664.6 Dismissal”). Notice of Motion (the “Motion”) at 1:22-25 (filed: June 18, 2026). This Section 473(d) Motion is made on the ground that the Section 664.6 Dismissal is void on its face because the case did not settle and *all* parties never stipulated in writing or orally that the case settled. *Id.* at 1:25-27

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On April 15, 2026, the Court held a further Case Management Conference (“CMC”) in this case. There, attorney Veronica Murayama specially appeared for Plaintiff on behalf of Plaintiff’s counsel of record Cynthia Allred; attorney Alan Sherwood appeared for Defendants Bill Bong and Jennifer Wong (“Defendants”).

At the outset of that CMC, upon attorney Sherwood advising the Court orally that a settlement had been reached, the Court exercised its discretion to dismiss this case without prejudice Code of Civil Procedure Section 664.6. However, upon counsel for all parties next advising the Court at that CMC that the settlement had not yet been reduced to a written agreement, and so perhaps was not yet final after all, the Court assured the parties that if the settlement was not finalized and reduced to writing soon then the Court would set aside the Section 664.6 Dismissal and reinstate this case promptly to active status.

Unfortunately, as Plaintiff advised the Court shortly after the April 15, 2026 CMC when he promptly filed this unopposed Motion, the parties have not been able to settle this case after all. Plaintiff is still negotiating with State Farm, an insurer of Defendants. So a settlement agreement has in fact not yet been finalized let alone reduced to writing.

Given this unfortunate development and the Court’s promise to set aside the Section 664.6 dismissal and promptly reinstate this case to active status if the settlement was not finalized and reduced to writing soon, the Court next on July 16, 2026 granted

Plaintiff's unopposed ex parte application to shorten time on the noticed hearing, thereby advancing the hearing on this Motion to today, September 4, 2026.

Defendants do not oppose the Motion.

Legal Standard

Code of Civil Procedure Section 473(d) authorizes this Court on motion of either party after notice to set aside any void judgment or judgment. C.C.P. § 473(d). The motion must be brought within six months of the order of dismissal. *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal. App. 4th 1434, 1440. An order is void on its face when the invalidity is apparent upon an inspection of the record. *Id.*

Analysis of the Motion

Here, upon the Court's inspection of the record, including the Declarations filed in Support of the Motion by counsel for *both* Plaintiff and Defendants who appeared the April 15, 2026 CMC, the Court finds the Section 664.6 Dismissal was void on its face because there was, in fact, *no* stipulation reached by the parties that the case had settled. Murayama Decl. at ¶ 3; Sherwood Decl. at ¶ 3. While the Court might have been told by Defense counsel during that hearing that a settlement was reached, Plaintiff is quite right that *Plaintiff's* counsel during that hearing did not stipulate orally before the Court—as Section 664.6 requires—that a settlement was reached. As such, the record shows that the Section 664.6 Dismissal in this case is void on its face.

Plaintiff timely filed this Motion to set aside this dismissal on June 18, 2026, well within six months of the April 23, 2026 date of the Section 664.6 Dismissal.

Moreover, Plaintiff persuasively argues in his moving papers that the Court should exercise its broad discretion under Section 473(d) to set aside this Section 664.6 Dismissal because, unfortunately, no final settlement agreement has been reached or signed by the parties, *and* the Court did promise during the April 15, 2026 CMC that if the settlement were not finalized and reduced to writing soon then the Court would set aside the Section 664.6 Dismissal and reinstate this case promptly to active status. Motion at 1:25-27, 3:23-5:4. The Court will keep its word.

For all these reasons, Plaintiff asks that the Court set aside the Dismissal, reinstate the case to active status, and set a further Case Management conference.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Accordingly, Plaintiff's Motion is **GRANTED** in all respects.

Conclusion & Order

Upon inspection of the record, including but not limited to the moving papers and supporting Declarations, and in the broad exercise of its discretion, the Court **GRANTS** the Motion of Plaintiff Vanderzyl in all respects. Specifically, the Court **ORDERS**:

1. The Order of Dismissal dated and entered on April 23, 2026 is **SET ASIDE**;
2. This Case No. 25CV466037 is **REINSTATED** to active status now; *and*
3. The Court **SETS** a further Case Management Conference for December 2, 2026, at 10:00 am in Department 16.³

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

³ If a settlement agreement should be reached in this case before the December 2, 2026 CMC, the parties should promptly file a Notice of Settlement and Request for Dismissal.

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